

# **HIGH COURT OF UTTARAKHAND AT NAINITAL**

## **Writ Petition (S/S) No. 330 of 2023**

Pratap Singh Adhikari

.....Petitioner

Versus

State of Uttarakhand and others

.....Respondents

Present:-

Mr. Sandeep Adhikari, Advocate for the petitioner.  
Mr. Ganesh Kandpal, D.A.G. for the State.

### **JUDGMENT**

#### **Hon'ble Ravindra Maithani, J. (Oral)**

It is the case of the petitioner that the petitioner has retired as Class IV employee. He retired on 30.04.2021. He was not paid his retiral dues. But, on 21.11.2022 (it is wrongly written as 18.11.2022), which after 19 months, an order to pay the gratuity was passed by the respondents/authorities. Out of which, Rs. 1,77,496/- has been recovered. The petitioner claims that the order of recovery may be quashed and the petitioner may be refunded that amount alongwith interest.

2. Heard learned counsel for the parties and perused the record.

3. Counter affidavits have been filed by the respondents/authorities. According to them, due to calculation error, as such, the payment was made to the petitioner which has been recovered from the gratuity payment to the petitioner.

4. Learned counsel for the petitioner submits that the petitioner is a Group-IV employee. He retired on 30.04.2021. He was not paid any retiral dues, after his retirement. For the first time,

gratuity and other payment were made to him on 18.11.2022, which is much after the due date when he was given retiral dues. He submits that in view of the judgment passed by the Hon'ble Supreme Court in the case of State of Punjab and others Vs. Rafiq Masih, (2015) 4 SCC 334 recovery of excess amount cannot be made post retirement from the Group IV employee. Therefore, the respondents/authorities may be directed to refund Rs.1,77,496/-, which has been recovered from the petitioner and the petitioner be also paid interest @ 6% per annum on the amount of retiral dues, which he received after much delay.

5. Learned State counsel submits that the petitioner was paid excess amount which was recovered from his gratuity after retirement. He fairly concede that in view of the judgment of the Hon'ble Supreme Court in the case of Rafiq Masih (*supra*), such recovery is not permissible.

6. Admittedly, the petitioner is a Group IV employee. He retired on 30.04.2021. He ought to have been given all his dues immediately thereafter. Admittedly, it was delayed for 19 months. The petitioner is definitely entitled to get interest on the delayed payment @ 6% per annum.

7. In the case of Rafiq Masih (*supra*), the Hon'ble Supreme Court has discussed the law on the question of recovery from employees of the excess amount that has allegedly been paid to them and in para 18 of the judgment, Hon'ble Supreme Court culled out the principles as follows:-

“18. It is not possible to postulate all situations of hardship which would govern employees on the issue of recovery, where payments have mistakenly been made by the employer, in excess of their entitlement. Be that as it may, based on the decisions referred to hereinabove, we may, as a ready reference, summarise the following few situations, wherein recoveries by the employers, would be impermissible in law:

(i) Recovery from the employees belonging to Class III and Class IV service (or Group C and Group D service).

(ii) Recovery from the retired employees, or the employees who are due to retire within one year, of the order of recovery.

(iii) Recovery from the employees, when the excess payment has been made for a period in excess of five years, before the order of recovery is issued.

(iv) Recovery in cases where an employee has wrongfully been required to discharge duties of a higher post, and has been paid accordingly, even though he should have rightfully been required to work against an inferior post.

(v) In any other case, where the court arrives at the conclusion, that recovery if made from the employee, would be iniquitous or harsh or arbitrary to such an extent, as would far outweigh the equitable balance of the employer's right to recover.

8. Any recovery of excess amount from the petitioner is not permissible, in view of the judgment of the Hon'ble Supreme Court in the case of Rafiq Masih (*supra*). Therefore, the action of the respondents/authorities by which Rs.1,77,496/- were recovered from him is bad in the eye of law. Accordingly, the respondents need to be directed to refund Rs.1,77,496/- to the petitioner with interest @ 6% per annum. Accordingly, the petition deserves to be allowed.

9. The writ petition is allowed.

10. The impugned order dated 21.11.2022 is quashed to the extent, it directs recovery of Rs.1,77,496/- from the petitioner. The recovered amount of Rs.1,77,496/- shall be refunded to the petitioner forthwith alongwith interest @ 6% per annum. The respondents/authorities are also directed to pay interest @ 6% on the retiral dues from the date it became due till it was actually paid to the petitioner.

(Ravindra Maithani, J)  
07.08.2025